

Question Bank

NIKAH REGISTRATION

1.1 Bride

# Question	Answer	Law Reference
1 What is the minimum legal age for a bride to marry?	Sixteen years is generally cited as the minimum marriage age for a female under the CMRA 1929; Sindh has raised the minimum age to eighteen for both sexes. Marriage below this age is an offence for those who arrange it, though the marriage itself is not automatically void under Muslim personal law.	Child Marriage Restraint Act 1929, s.2 & 4; Sindh Child Marriage Restraint Act 2013, s.3–4
2 Can the bride insert conditions in the Nikahnama (for example, delegated right of divorce — Talaq-e-Tafweez, right to work, or a bar on a second marriage)?	Yes. Column 18 of the Nikahnama allows special conditions, including delegation of the power of divorce to the wife.	MFLO 1961, s.8; Nikahnama Form, Columns 17–18
3 Is the bride's free consent mandatory for a valid Nikah?	Yes. Consent is an essential ingredient of a valid Muslim marriage contract; a marriage without free consent is voidable or void depending on the circumstances.	Islamic law of contract as recognised in the MFLO 1961; general principles applied by the superior courts
4 Where is the bride's Nikah legally registered?	With the Union Council, or a Nikah Registrar licensed for the relevant Union Council, having jurisdiction over the area where the Nikah is solemnised.	MFLO 1961, s.5
5 What happens if the Nikah is not registered?	Non-registration does not invalidate a religiously solemnised Nikah, but it is an offence for the parties and the Nikah Registrar, and it creates difficulties in proving the marriage for legal and administrative purposes such as CNIC issuance, passport applications, inheritance, and maintenance suits.	MFLO 1961, s.5(3)–(5)
6 Can the bride obtain a copy of the registered Nikahnama from the Union Council?	Yes, certified copies can be obtained from the Union Council or Arbitration Council record on application.	MFLO 1961, s.5; Punjab/Sindh Local Government Rules
7 Can a Nikah be registered electronically, or does it require in-person appearance at the Union Council?	Registration remains a Union Council record-keeping function. Most provinces still require the Nikah Registrar to physically report the marriage and enter it in the register, though several Union Councils now also upload the data to a NADRA-linked e-governance portal after physical registration.	MFLO 1961, s.5; provincial Local Government e-governance rules
8 If a Wali or family member falsely reports the bride's age to permit an underage marriage, what is the	The persons responsible for contracting or permitting the marriage, not the minor, are liable to prosecution. The CMRA 1929 and the Sindh CMRA	Child Marriage Restraint Act 1929, s.4, 5, 5A; Sindh Child Marriage Restraint Act

consequence?	2013 penalise those who solemnise, direct, or negligently fail to prevent a child marriage.	2013, s.4–9
9 If a bride belongs to a non-Muslim faith, is her marriage registered through the same Nikah process?	No. The MFLO 1961 and the Nikah registration process apply to Muslim marriages. Marriages of other faiths are governed and registered under their own personal-law statutes — for example, the Christian Marriage Act 1872, or the Sindh Hindu Marriage Act 2016 and the Hindu Marriage Act 2017 (for the rest of Pakistan) — through the relevant registrar for that community rather than the Union Council Nikah Registrar.	Christian Marriage Act 1872; Hindu Marriage Act 2017; Sindh Hindu Marriage Act 2016

1.2 Groom

# Question	Answer	Law Reference
1 What is the minimum legal marriage age for the groom?	Eighteen years.	Child Marriage Restraint Act 1929, s.2
2 Is the groom required to disclose an existing marriage before Nikah?	Yes. If already married, the groom must obtain prior permission from the Arbitration Council before contracting a second marriage.	MFLO 1961, s.6
3 What is the penalty for contracting a second marriage without Arbitration Council permission?	Simple imprisonment of up to one year, or a fine of up to Rs. 5,000, or both; in addition, the entire Haq Mehr (dower) of the existing wife or wives becomes immediately payable.	MFLO 1961, s.6(5)
4 What documents must the groom present for registration?	CNIC, proof of age, and — where applicable — Arbitration Council permission for a second marriage, and a divorce or death certificate if previously married.	MFLO 1961, s.5–6; Nikahnama Rules
5 Can the groom register the Nikah at a Union Council outside his domicile?	Registration is generally carried out at the Union Council where the Nikah ceremony takes place; residence of either party within that jurisdiction is typically sufficient.	MFLO 1961, s.5; Local Government Rules
6 If the groom conceals a prior marriage and remarries without Arbitration Council permission, can the first wife use this as a ground for her own dissolution suit?	Yes. An unauthorised second marriage is itself recognised as a ground supporting a wife's suit for dissolution of marriage under the DMMA, in addition to the automatic dower and penal consequences under MFLO s.6(5).	Dissolution of Muslim Marriages Act 1939, s.2(viii)(f) by analogy; MFLO 1961, s.6(5)

1.3 Wali (Guardian, Where Applicable)

# Question	Answer	Law Reference
1 Is a Wali's consent mandatory for an adult woman's marriage?	Under Hanafi Muslim law as followed in Pakistan, an adult, sane woman can contract her own marriage without a Wali's consent, though a Wali's presence is customary.	General Muslim personal law recognised by Pakistani courts, e.g. the Saima Waheed case, PLD 2004 SC 219
2 What is the Wali's role in the Nikah ceremony?	Traditionally, the Wali represents or consents on behalf of a minor, or by custom assists in negotiating the terms of marriage. His signature may appear as a witness, but it is not a precondition for validity where the bride is an adult.	Islamic jurisprudence; the MFLO 1961 is silent on mandatory Wali consent for adults
3 Can a Wali object to or block the marriage of a sane adult woman?	No. Courts have consistently held such an objection unenforceable where the woman is an adult and sane and the marriage otherwise complies with the law.	PLD 2004 SC 219 (Saima Waheed case)

1.4 Two Witnesses

# Question	Answer	Law Reference
1 How many witnesses are legally required for a valid Nikah?	Islamic law recognises the presence of at least two adult male witnesses, or one male and two females, as a general requirement in practice, and the Nikahnama form requires witness signatures for registration purposes.	MFLO Rules / Nikahnama Form; general Islamic jurisprudential requirement
2 Can a witness be summoned later in a dispute over the marriage's validity?	Yes. Witnesses to the Nikah can be summoned by a Family Court to give evidence of the marriage's solemnisation if it is disputed.	Family Courts Act 1964, s.17; Qanun-e-Shahadat Order 1984, Art.17

1.5 Licensed Nikah Registrar (Nikah Khawan)

# Question	Answer	Law Reference
1 Who can be appointed as a Nikah Registrar?	A person licensed by the Union Council under rules framed by the Local Government, for a specific ward or circle.	MFLO 1961, s.5(1); Local Government (Nikah Registrar) Rules
2 What is the Registrar's duty upon solemnising a Nikah?	To report and register the particulars of the marriage with the Union Council within the prescribed time, commonly within three days, and to maintain the Nikah Register.	MFLO 1961, s.5(2)–(3)
3 What is the penalty for a Registrar's failure or delay in reporting a Nikah?	Simple imprisonment of up to three months, or a fine of up to Rs. 1,000, or both.	MFLO 1961, s.5(4)
4 Can a Nikah Registrar's licence be suspended or cancelled?	Yes, by the Union Council or Local Government for misconduct, fraud, or violation of the rules — for example, registering an underage marriage or a bigamous marriage without permission.	Local Government Nikah Registrar Rules (provincial)
5 Is the Registrar responsible for verifying the identities and ages of the parties?	Yes. Verification of the CNIC or B-Form and age is part of the Registrar's due diligence before solemnising or registering the marriage.	MFLO Rules; Child Marriage Restraint Act 1929
6 Is a Nikah Registrar's failure to obtain the bride's independent signature or thumb impression on the Nikahnama fatal to the marriage's validity?	No. Non-compliance with registration formalities is an administrative or penal lapse attributable to the Registrar; it does not by itself invalidate a Nikah that otherwise meets the substantive Islamic-law requirements of offer, acceptance, and witnesses, though it weakens documentary proof and can be challenged.	MFLO 1961, s.5; the general principle that registration is directory for proof, not a condition of validity
7 Can a Nikah Registrar refuse to solemnise a marriage where one party appears to be acting under duress?	Yes, and arguably should. A Registrar's due-diligence duty extends to satisfying himself that both parties are consenting freely; where duress is apparent, the Registrar may decline to proceed and refer the matter, and proceeding despite visible coercion can expose the Registrar to licence action if the marriage is later challenged.	MFLO 1961, s.5; Local Government Nikah Registrar Rules; general principle that consent is essential to a valid Nikah

1.6 Union Council Secretary

# Question	Answer	Law Reference
1 What is the Secretary's role in Nikah registration?	Maintaining the Nikah Register, receiving Registrar reports, issuing certified copies and extracts, and forwarding records for NADRA integration.	MFLO 1961, s.5; Local Government Act (provincial)
2 Can the Secretary refuse to register a	The Secretary does not "approve" a Nikah; the role is administrative record-keeping. A refusal	MFLO 1961, s.5; Local Government

Nikah? to register on valid grounds, such as incomplete documentation, can be reviewed by the Chairman of the Union Council. Rules

1.7 Chairman, Union Council

# Question	Answer	Law Reference
1 What is the Chairman's function regarding Nikah records?	Presiding over and administering the Union Council, including its Arbitration Council functions such as permission for a second marriage, and oversight of Nikah Registrars.	MFLO 1961, s.5–6; Local Government Act
2 Who chairs the Arbitration Council for a second-marriage permission request?	The Chairman of the Union Council, or his nominee, typically chairs or constitutes the Arbitration Council together with a representative of each party.	MFLO 1961, s.6(1)–(2)

1.8 Advocate / Lawyer (Secondary)

# Question	Answer	Law Reference
1 Can a lawyer contest the validity of a registered Nikah?	Yes, through a declaratory suit before the Family Court regarding the existence or validity of the marriage.	Family Courts Act 1964, Schedule (marriage-related suits)
2 What relief can be sought if a Nikahnama is forged?	A suit for a declaration that the Nikahnama is forged or void, together with, where applicable, a criminal complaint for forgery.	PPC 1860, s.463–471 (forgery); Family Courts Act 1964
3 What forum is used to compel a Nikah Registrar or Union Council to issue a certified copy or register entry that is being wrongly withheld?	A writ petition under Article 199 of the Constitution before the High Court, or a representation to the Local Government or Union Council administration, since this is an administrative function that falls outside ordinary Family Court jurisdiction.	Constitution of Pakistan, Art. 199; MFLO 1961, s.5

1.9 NADRA Officer (Secondary)

# Question	Answer	Law Reference
1 How is Nikah data integrated with NADRA records?	Union Councils forward registered Nikahnama data to NADRA to update family and marital-status records linked to the CNIC.	NADRA Ordinance 2000; MFLO Rules
2 Can NADRA independently verify a disputed Nikahnama?	NADRA can confirm what is on its record but cannot adjudicate validity disputes; that requires a Family Court declaration.	NADRA Ordinance 2000; Family Courts Act 1964